Republic of the Philippines
Province of Bukidnon
City of Malaybalay
Bids and Awards Committee
New City Hall, Barangay Casisang
Malaybalay City, Bukidnon
Tel (088) 813-4761
bacmalaybalay@gmail.com

Contract Reference Number: **2026-055**
Name of the Contract: **PURCHASE OF 1 UNIT WHEEL LOADER**
Location of the Contract: **CDRRMO, MALAYBALAY CITY**

NOTICE TO PROCEED

_____

REYNARD MORENO
Account Manager
MONARK EQUIPMENT CORPORATION
13 Economia St. Bagumbayan, Quezon City
w/ Branch office at El Salvador, Misamis Oriental

Dear Sir:

The attached Contract Agreement having been approved, notice is hereby given to **MONARK EQUIPMENT CORPORATION** that work may commence on the **PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY.**

Upon receipt of this notice, you are responsible for performing the services under the terms and conditions of the Agreement and in accordance with the Implementation and Payment Schedule:

Please acknowledge receipt and acceptance of this notice by signing both copies in the space provided below, keep one copy and return the other to the ***City of Malaybalay.***

Very truly yours,

JAY WARREN R. PABILLARAN
City Mayor

I acknowledge receipt of this Notice on _____
(Date of receipt)

Name of the Representative of the Bidder **REYNARD MORENO**

Authorized Signature: _____

Republic of the Philippines
Province of Bukidnon
City of Malaybalay
New City Hall, Barangay Casisang. 8700
Tel (088) 813-4761-2

Contract No.: 2026-130

CONTRACT FOR

PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY

KNOW ALL MEN BY THESE PRESENTS:

This CONTRACT executed on the _____ day of _____ 2026 by and between:

CITY GOVERNMENT OF MALAYBALAY, a government agency of the Republic of the Philippines, hereinafter called **"the Entity"**;

-and-

MONARK EQUIPMENT CORPORATION a company duly organized and existing under the laws of **Quezon City**, with principal office at **13 Economia St. Bagumbayan, Quezon City**, hereinafter called **"the Supplier"**.

WHEREAS, the Entity invited Bids for certain goods, **PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO**;

WHEREAS, the Supplier submitted a responsive bid and was awarded the contract for the procurement in the total amount of **TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY (P 10,650,000.00)**, hereinafter referred to as the **"Contract Price."**

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree as follows:

1. Unless otherwise stated, terms and expressions used in this Contract shall have the same meanings as those assigned to them in the Conditions of Contract, which form an integral part of this Contract.

2. The following documents as required by the Implementing Rules and Regulations of Republic Act No. 12009 shall form part and be read and construed as integral parts of this Contract, *viz.*:

   a. **Philippine Bidding Documents (PBD);**
   - ***For Procurement of Goods***

   i. Invitation to Bid;
   ii. Instruction to Bidders;
   iii. Bid Form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
   iv. Bid Data Sheet;
   v. Schedule of Requirements;
   vi. Technical Specifications;
   vii. General and Special Conditions of Contract;
   viii. Supplemental Bid Bulletins, if any; and
   ix. Other contract documents that may be required by existing laws and/or the Entity.

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer- Procuring Entity Witness

JAY WARREN R. PABILLARAN
City Mayor

***b.* Winning bidder's bid, including the Eligibility Requirements, Technical and Financial Proposals, and all other documents or statements submitted;**

***c.* Performance Security;**

***d.* Notice of Award of Contract; and the Bidder's Conforme thereto; and**

***e.* Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBD, such as but not limited to the Notice to Proceed and Warranty Security.**

3. In consideration of the Contract Price of **TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY (P 10,650,000.00)**, or such other sums as may be determined in accordance with the terms of the Contract, the Supplier agrees to deliver and perform the items and related services for the **PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO** described herein in accordance with the terms and conditions specified in the Contract and its annexed documents.

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer- Procuring Entity Witness

JAY WARREN R. PABILLARAN
City Mayor

Item No.	QTY	Unit	Description	Unit Cost	Amount
1	1	Unit	**WHEEL LOADER**	10,650,000.00	**10,650,000.00**
			Brand/ Model: Caterpillar 950GC		
			Specifications:		
			Engine: Turbocharged Diesel Engine		
			Rated Engine Horsepower: 243 hp @ designed rpm		
			Rated Net Torque: 1092 N-m @ designed rpm		
			Environmental Compliance: Tier IV emission standards		
			Transmission: 4 forward & 3 reverse transmission		
			Operating Specifications:		
			Operating Weight:18.849 metric tons		
			Bucket Size: 3.2 Cu.m		
			Breakout force: 154 kN		
			Static Tipping Load Full turn (no tire deflection): ≥ 11,906 kg		
			Dumping height at max lift & 45° discharge: ≥ 4,188 mm		
			Ground clearance: 460 mm		
			Operator Environment: Ladders with guardrails & handrails		
			Fully air-conditioned eclosed cab		
			Audio-entertainment system		
			Mechanical suspension seats		
			Safety Features: ROPS/FOPS certified cabin		
			Seat belts		
			Back-up alarm		
			Adequate lighting system		
			Inclusions: Standard tools with toolbox		
			Grease gun		
			Decals & Logos		
			Operator's Manual (Hard and Soft Copy)		
			Service & Maintenance Manual (Hard & Soft Copy)		
			Parts Manual (Hard & Soft Copy)		

Item No.	QTY	Unit	Description	Unit Cost	Amount
			Other Conditions: Machine warranty for 3 years unlimited running hours for factory defects.		
			Free preventive maintenance servicing up to 4000 hours with free filters, oils and oil sampling		
			Free orientation and training for Operators and Maintenance Personnel		
			Dealer must have an Exclusive distributorship/dealership of the equipment being offered by the manufacturing company and must submit proof of the same		
			Dealer must have an Exclusive distributorship/dealership of the equipment being offered by the manufacturing company and must submit proof of the same		
			Must have a service center and parts warehouse and service support within Region X & XI		
			After sales support team must be available 24/7		
			Dealers must provide a 1-year warranty for spare parts purchased as part of their after-sales support.		
			Supplier must submit a notarized copy of the machine's waybill or bill of lading		
			Unit must be equipped with Remote Management System or Telematics, and company must provide free access to the same		
			Company must have a 24/7 Online parts store and online parts manual support system for the machine offered and provide free access		
			NOTHING AS FOLLOWS		
			TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY	GRAND TOTAL	10,650,000.00
Place of Delivery:			NEW CITY HALL, BARANGAY CASISANG	Delivery Term:	30 C.D.
In case of failure to make the full delivery within the time specified above, a penalty of one-tenth (1/10) of one percent for every day of delay shall be imposed.					

4. The **CITY GOVERNMENT OF MALAYBALAY** agrees to pay the above-mentioned sum to the Supplier in accordance with the schedule and manner provided in the Bidding Documents and its annexes.

5. Any dispute, difference, or claim arising out of or relating to this Contract, including its existence, validity, interpretation, breach, or termination thereof, may be submitted to arbitration or other form of alternative dispute resolution in accordance with the applicable law, such as Republic Act No. 9285 (Alternative Dispute Resolution Act of 2004) or Executive Order No 1008, series 1985 (Construction Industry Arbitration Law).

Supplier Witness

REYNARD MORENO
Account Manager

BELLA STEPHANIE B. SAAVEDRA
City Treasurer- Procuring Entity Witness

JAY WARREN R. PABILLARAN
City Mayor

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

Head of the Procuring Entity or Duly Authorized Representative	Duly authorized to sign the Contract for and behalf of **MONARK EQUIPMENT CORP.**
JAY WARREN R. PABILLARAN ***City Mayor*** ***Date:*** _____	**REYNARD MORENO** ***Account Manager*** ***Date:*** _____

Signed in the presence of:

BELLA STEPHANIE B. SAAVEDRA ***City Treasurer*** ***Witness – Procuring Entity***	Gerald Albino ***Name and Signature*** ***Witness- Supplier***

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in the MANOLO FORTICH, BUKIDNON, City/Province of _____, this _____ day of 12 AUG 2026, 2026, personally appeared the above-named persons who have satisfactorily proven to me their identity, through their identifying documents written below their names and signatures, that they are the same persons who executed and voluntarily signed the foregoing instrument consisting of **FOUR (4)** pages, including this page where this Acknowledgement is written, which they acknowledged before me as their free and voluntary act and deed.

WITNESS MY HAND AND SEAL this 12 AUG 2026 day of _____, *2026.*

NAME OF NOTARY PUBLIC
Notarial Commission No. _____
Notary Public for _____ until _____
Roll of Attorneys No. _____
PTR No. _____,
IBP No. _____,

ATTY. JAY S. ALBARECE
NOTARY PUBLIC No. 24-11-35
UNTIL JANUARY 27, 2027 ROLL No. 48605
PTR No. 8214220 - B 12/5/25 for the year 2026, Prov. of Bukidnon
MCLE Compliance No. VI-0021295, 09-29-16, TIN No. 928-422-556
IBP Lifetime OR No. 015533, 12-15-16, Misamis Oriental
RnB Bldg. Tankulan, Manolo Fortich Bukidnon

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Book No. 33
Series of. 2026

Republic of the Philippines
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Tel (088) 813-4761
bacmalaybalay@gmail.com

Standard Form Number: SF-GOOD-49
Revised on: May 24, 2004

Contract Reference Number: **2026-055**
Name of the Contract: **PURCHASE OF 1 UNIT WHEEL LOADER**
Location of the Contract: **CDRRMO, MALAYBALAY CITY**

NOTICE OF AWARD

JUL 29 2026

REYNARD MORENO
Account Manager
MONARK EQUIPMENT CORPORATION
13 Economia St. Bagumbayan, Quezon City
w/ Branch office at El Salvador, Misamis Oriental

Dear Sir:

We are informing you that your Bid dated **April 29, 2026** for execution of **BID NO. 2026-055 PURCHASE OF 1 UNIT WHEEL LOADER, CDRRMO, MALAYBALAY CITY** with a total contract price of **TEN MILLION SIX HUNDRED FIFTY THOUSAND PESOS ONLY (P 10,650,000.00)** is hereby accepted.

You are hereby required to provide within ten (10) calendar days the performance security in the form and the amount stipulated below:

Failure to provide the performance security shall constitute sufficient ground for cancellation of the award and forfeiture of the bid security.

Cash Bond, cashier's /manager's check, Bank Draft/guarantee: or Irrevocable Letter of Credit; or	**P 532,500.00**
Surety Bond:	**P 3,195,000.00**

***** Note: Expiry should be "Until Issuance of final acceptance"**

Very truly yours,

JAY WARREN R. PABILLARAN
City Mayor

Conformed:

REYNARD MORENO
MONARK EQUIPMENT CORPORATION
Date: _____